

Background Annex — MPS Purpose, Participation Failure, and Judicial Coercion

*Contemporaneous email evidence — Master Workbook v8 — February to
May 2024*

Case references

BV20D01752 | Zahmoul v Zahmoul

Referred to:

MPS Serious and Organised Crime Command
CPS Special Crime Division
NCA Economic Crime Command
President of the Family Division — for transparency

Nadia Zahmoul

Litigant in Person

15 March 2026

Veritas Numquam Perit

To be read with: the Suppression of Disability (Preliminary Document) and the Unilateral Orders Full Misconduct in Public Office Report.

PART A — MPS: PURPOSE, NON-ENFORCEMENT, AND INTENDED POST-TRIAL USE

The Maintenance Pending Suit order made by MacDonald J on 5 July 2023 served one purpose: living expenses for NZ and her two daughters. This means housing and rent, groceries, basic necessities, utilities, and healthcare. In the post-trial period, NZ additionally intended to use MPS income to fund legal representation for the draft order process and appeal — her only available source of funds for legal fees. Without MPS income she could not retain solicitors. Without solicitors she could not participate in the draft order process on equal terms.

H was in breach of the MPS order from February 2024. NZ made 72+ documented enforcement requests. Zero enforcement actions were taken. MacDonald J refused enforcement on 7 May 2024 — after the fee for the D50K application had been paid — on procedural grounds. Para 34 of the final order, inserted by Campbell KC without notice or hearing on 3 May 2024, extinguished all arrears permanently.

> *"I seek equal footing in these proceedings. I seek to have the same rights as the respondent. I seek immediate enforcement of the MPS order... I do not seek the judgment money."*

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> NZ to Kelly Foxwell (Moor J's clerk), 16 May 2024 — Row 313, Master Workbook v8

> *"I cannot draft the order and do the submission without food, accommodation, and necessities. And I cannot do them without the same level of legal assistance the respondent had."*

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> NZ to court via Higgleton, 7 May 2024 — Master Workbook v8

MPS Non-Enforcement to Participation Exclusion: The Causal Chain

Date	Event
Feb 2024	H ceases MPS payments. NZ has no income for food, housing, or legal fees.
6 Mar 2024	Part 3A measures cease without judicial act. Solicitors withdraw. NZ becomes LiP without guidance, funds, or representation.
Mar–Apr 2024	72+ MPS enforcement requests. Zero enforcement

	actions. NZ cannot retain solicitors for the draft order process.
2 May 2024	D50K enforcement application filed. Fee paid. Confirmed received by judge at 17:20 via Karen. Never determined.
3 May 2024	Para 34 inserted by Campbell KC — MPS arrears extinguished without notice, without hearing, one minute after NZ wrote to the Lord Chancellor.
7 May 2024	MacDonald J formally refuses MPS enforcement — after the fee was paid.
14 May 2024	Campbell files five material amendments while NZ is in hospital with £120. No MPS. No food. No legal representation.
17 May 2024	Third day of hunger. Still no MPS enforcement.
24 May 2024	Final order sealed. Para 34 locks in. NZ exits with £89. Nothing transferred.
29 May 2024	" <i>This is the 72nd time I have requested enforcement of the MPS.</i> " — NZ's own count.

PART B — JUDICIAL COERCION CONTEMPORANEOUS WITH THE DRAFT ORDER PROCESS

On 3 May 2024 — the same day Campbell KC filed the unilateral draft order and inserted para 34 — MacDonald J transmitted two written responses via Karen Selby-King. Both responses reframed NZ's participation requests as something else in order to refuse them. The workbook records these as priority strategic evidence.

> "*Your communications are entirely inappropriate and must cease. If you have a £6.2 million financial remedy order that you disagree with, your remedy is to appeal.*"

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> MacDonald J via Karen Selby-King — 3 May 2024, 10:26am — Row 271, Master Workbook v8

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> [Stated twice in the same communication. Transmitted the morning Campbell filed the unilateral draft.]

What NZ Was Asking	MacDonald J's Two Responses — 3 May	MiPO Analysis
NZ's requests on 2-3 May were specific and procedural: (1) Why is Campbell KC permitted to submit unilaterally when I have no	Response 1 — 10:26am: " <i>Your communications are entirely inappropriate and must cease.</i> " Characterises NZ's participation request as related to "£6.2M."	WILFUL NEGLECT — active reframing: Both written responses prove MacDonald J read NZ's submissions carefully. The reframing of her equal

equal footing? (2) Please enforce the MPS so I can obtain food, accommodation, and legal representation. (3) Please give me reasons for refusing equal footing. (4) Please tell me the correct form to file a stay. NZ was not challenging the judgment. She explicitly separated the two: [Row 277] "I am not trying to argue the judgment... I do not want to be a LiP. I seek legal representation on the same level as the respondent."	Directs her to agree the order or appeal. States "<i>the court has taken no decision that requires reasons to be given.</i>" Response 2 — afternoon: Reframes NZ's equal footing request as a request for the court to arrange legal representation — a ground she never invoked — then refuses it on that false basis. Timing: Response 1 at 10:26am. Campbell files at 13:08. Para 34 inserted at 15:55 — one minute after NZ emails Lord Chancellor. Judge accepts Campbell's draft at 16:48.	footing argument as a request for the court to arrange legal representation was precise enough to be deliberate. A passive reader does not produce a specific false reframing. This is the act that establishes wilful indifference — not passive neglect. The £6.2M characterisation: NZ was asking for procedural fairness and MPS enforcement for living expenses. MacDonald J characterised this as conduct related to a "£6.2M order." This characterisation was used on the same day her live enforcement application was extinguished by para 34. It is documented in the workbook as a priority strategic record.
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PART C — SELECTED EMAIL EVIDENCE: PARTICIPATION FAILURE AND INCAPACITY

Selected from Master Workbook v8. Each record was contemporaneous, received by named court officials or counsel, and confirmed forwarded to MacDonald J where indicated.

Row	Date	Direction	Précis + Legal Significance
76	18 Mar 2024	INBOUND — AFP Bloom	AFP Bloom confirms they are off the record. Attendance at judgment is conditional on NZ "<i>finding funds.</i>" This directly contradicts Zoë Bloom's 6 March undertaking that the firm would comply with its obligations. NZ entered the draft order period without legal representation. Legal significance: Establishes that NZ became LiP at the critical post-judgment stage due to funding collapse caused directly by MPS non-enforcement and Part

			3A cessation. No income = no solicitor = no participation in draft order process.
95	21 Mar 2024	INBOUND — Zoë Bloom	"I cannot give you a binary answer" — Zoë Bloom formally refuses to give NZ a binary YES/NO on whether the brief fee covers order drafting. This is the clearest documented refusal in the dataset to provide the communication format required by an autistic client on the most basic procedural question about her own case. Legal significance: CLAAS diagnosis (June 2025) confirms binary questions are a core accommodation need. The refusal to answer is documented evidence of NZ's participation need being denied by her own solicitor before she became LiP.
238	30 Apr 2024	OUTBOUND	NZ writes to Campbell KC invoking the Bar Code of Conduct. States MPS breach means she cannot pay rent. Demands enforcement including rent payments for March and April 2024. States explicitly: MPS is for housing, rent, food for her and her daughters. Legal significance: MPS purpose stated to opposing counsel on record, before para 34 was inserted. Campbell was on notice of the specific purpose of the MPS at the time she prepared to extinguish the arrears.
249	2 May 2024 00:25	OUTBOUND	D50K enforcement

			application filed to RCJ and Karen at 00:25. <i>"Please find attached an urgent notice of application for enforcement by such method of enforcement as the court may consider appropriate. The application is for enforcement of the MPS order made by Justice MacDonald on 5 July 2023."</i> Fee paid 9 May (£58). Legal significance: LIVE APPLICATION ON RECORD. Karen confirms receipt at 17:20 — forwarded to MacDonald J. Never listed. Never determined. Extinguished by para 34 inserted by Campbell on 3 May — one day after this filing.
256	3 May 2024 13:59	OUTBOUND	<i>"I need food and accommodation urgently. I need to eat; I am hungry and I have anaemia. If he cannot enforce, please could you ask him to set out his reasons and what my options are."</i> Legal significance: WELFARE DISCLOSURE TO COURT ON RECORD — transmitted to MacDonald J at 16:48 on the same day Campbell inserts para 34. The judge has NZ's starvation disclosure and Campbell's draft simultaneously.
258	3 May 2024 15:54	OUTBOUND	<i>"Why is the court knowingly keeping me in a position which is unequal, unfair, and unjust relative to the</i>

			<i>respondent's position, in circumstances where the court has the power to enforce the mechanism by which I can have equity?"</i> Addressed to Lord Chancellor Chalk and MacDonald J simultaneously. Legal significance: LORD CHANCELLOR ON NOTICE AT 15:54. Para 34 inserted ONE MINUTE LATER at 15:55. This is the most significant timestamp in the dataset.
271	3 May 2024 10:26	INBOUND — MacDonald J	<i>"Your communications are entirely inappropriate and must cease. If you have a £6.2 million financial remedy order that you disagree with, your remedy is to appeal."</i> £6.2M stated twice. No reasons for refusing equal footing. No guidance on the stay form. No MPS enforcement. Legal significance: PRIORITY STRATEGIC. Transmitted same morning as Campbell's 13:08 filing. The characterisation of NZ's participation request as related to "£6.2M" is a deliberate reframing documented in the workbook as the primary source of the coercion quote.
313	16 May 2024	OUTBOUND	<i>"I seek equal footing in these proceedings. I seek to have the same rights as the respondent. I seek immediate enforcement of the MPS order. I do not seek the judgment</i>

			money." Legal significance: KEY DISTINCTION ON RECORD: NZ explicitly states she is not seeking to reargue the judgment. She wants MPS enforcement (living expenses). This directly contradicts MacDonald J's £6.2M characterisation. Forwarded to MacDonald J by Foxwell.
328	17 May 2024	OUTBOUND	"I am now on my third day of hunger, not by choice, but because Justice MacDonald refuses to enforce the maintenance order... I intend to appeal the judgement in its entirety. However, I am losing my strength and am on my third day of hunger." Copied to The Guardian and TBIJ. Legal significance: THIRD DAY OF HUNGER ON RECORD — five days before the sealed order is transmitted. MacDonald J is on notice via Foxwell (who confirms same day emails forwarded to judge). The condition of the party whose financial settlement is being finalised without her participation is documented and forwarded to the judge.
356	29 May 2024	OUTBOUND	"This is the 72nd time I have requested enforcement of the MPS." £89 bank balance. 85-year-old father sole financial support throughout March-May 2024. Draft order not ready. Order not agreed. Appealing

			entire order. Legal significance: 72nd MPS enforcement request — five days after sealed order. £89 bank balance at conclusion of £6.2M proceedings. Sealed order contains para 34 extinguishing all arrears. The gap between the judgment figure and NZ's actual financial position at conclusion is total.
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SUMMARY FOR INVESTIGATING OFFICERS

The MPS order (5 July 2023) was for living expenses — housing, rent, groceries, and basic necessities for NZ and her two daughters — and was additionally intended to fund legal representation in the post-trial period. H was in breach from February 2024. NZ made 72+ documented enforcement requests. Zero enforcement actions were taken.

Without MPS income NZ could not retain solicitors. Without solicitors she could not participate in the draft order process. The causal chain from MPS non-enforcement to participation exclusion is therefore direct and documented. This is not a separate financial matter. It is the mechanism by which NZ was excluded from her own financial settlement proceedings.

On 3 May 2024, while simultaneously receiving NZ's welfare disclosures and her live D50K enforcement application, MacDonald J transmitted two written responses. Both responses reframed her participation requests in order to refuse them without giving reasons. On the same day Campbell KC extinguished her live enforcement application by inserting para 34 — one minute after NZ wrote to the Lord Chancellor. The judge accepted the submission.

NZ exited the proceedings with £89 in her bank account. No assets transferred. No pension transfers. MPS arrears cancelled. Nothing received to date. She was left without participation measures, without income, and without understanding of what had happened. These are the conditions the MiPO referral addresses.

EVIDENCE AVAILABILITY

The complete open correspondence and raw email evidence for the period February to June 2024 — including all 379 records referenced in the Master Workbook v8 — is archived in full on the public archive: **github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive**. All records identified in this annex by row number are available for forensic inspection alongside their full email content and metadata.